

Civil RICO, Qui Tam Suits, and the 2026 USPS Election-Mail Litigation

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Status: **Draft v5** — prepared as background material for attorney review. **This document is NOT legal advice and does not assert that any specific countersuit is viable.** It summarizes public-record research only; whether any of it supports an actual claim is a legal judgment for counsel to make.

Prepared by: Ralph Burton Harris III.

Prepared for attorney review — attorney identity confirmed. This material is intended for review by **William K. “Bill” Kirk, President of Washington Gun Law** (Spokane, WA), who hosts the associated “Washington Gun Law” YouTube channel. Confirmed directly via his firm bio:¹

- 20-time recipient of Washington State’s Super Lawyer award (top 1% of attorneys in the state).
- Graduate of Washington State University and Gonzaga University School of Law.
- Former Spokane County and King County Prosecuting Attorney; in private practice defending the accused, including self-defense/lawful-use-of- firearm cases, since 2000.
- Has taught attorneys in trial practice in 26 states and lectures nationally on Second Amendment issues.

Earlier drafts of this report (v3–v4) carried an unresolved identity question, since the user’s initial description (“Kirk, who heads the 2nd Amendment Institute”) did not match either of the two “Kirk” candidates initially investigated: Second Amendment Institute (led by Tyler Yzaguirre, not a Kirk) and Cooper & Kirk, PLLC (Michael W. Kirk, a different attorney). The user then supplied the direct source link (washingtongunlaw.com) that resolved it. **Washington Gun Law / William K. Kirk is the confirmed, final match** — consistent with the user’s earlier context clue (“Washington state executives”), since Mr. Kirk practices in Washington State. See² for the full audit trail of ruled-out candidates.

Assessment note (not independently verified): Mr. Kirk’s credentials above come from his own firm’s bio page, not yet cross-checked against an independent source (e.g., the Washington State Bar Association’s public attorney lookup, or superlawyers.com’s own listing page). Nothing found in this research is a red flag, but independent confirmation of bar standing would be a reasonable step before relying on this report in front of him.

¹Attorney bio, William K. Kirk, Washington Gun Law: <https://www.washingtongunlaw.com/william-k-kirk-2> (retrieved 2026-09-30). Confirms: President of Washington Gun Law (Spokane, WA); host of the “Washington Gun Law” YouTube channel; 20-time Washington State Super Lawyer; J.D., Gonzaga University School of Law; B.A., Washington State University; former Spokane County and King County Prosecuting Attorney; in private practice since 2000.

²Two other “Kirk” candidates were investigated and ruled out before the correct match was found: (1) Second Amendment Institute (SAI), a D.C.-based 501(c)(3) founded 2016 — its founder/president is Tyler Yzaguirre, not Kirk, per SAI’s website, press releases, and attorneys of record in *Yzaguirre v. District of Columbia*, No. 1:24-cv-01828 (D.D.C.), retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=%22Yzaguirre%20v.%20District%20of%20Columbia%22&type=r&format=json>; (2) Cooper & Kirk, PLLC, a D.C. constitutional-litigation firm co-founded by Michael W. Kirk with a Second Amendment practice area (<https://www.cooperkirk.com/practice-areas/constitution-second-amendment/>) — a different person from William K. Kirk, and the firm is not called an “institute.”

Correction note (v2): v1 of this report searched for “RNC Services, Inc.” and found no matches anywhere. The user subsequently clarified the intended name was “**DNC Services, Inc.,**” a.k.a. **the Democratic National Committee**. This version re-runs the relevant searches under the corrected name. The DNC’s actual, long-standing formal corporate name is “**DNC Services Corporation**” (not “DNC Services, Inc.”) — see Part 3a below.

Source documents. The complaint, related-case complaints, and the underlying Federal Register rule discussed below have been downloaded in full and are available locally in sources/, so this report and any future drafting do not depend on the documents remaining available online.

Open questions — answer before sending to counsel

This report was built from public-record research (court dockets, news search) only. It has **no facts about the user’s own situation**, because those facts have not yet been supplied. A countersuit theory cannot be responsibly drafted without them. Before this goes to an attorney, please supply:

1. **Attorney identity — resolved:** William K. “Bill” Kirk, President of Washington Gun Law (Spokane, WA). See the confirmation note above.
2. **Existing case** — is there a pending lawsuit in which the user is currently a defendant, making this a *counter-suit*? Case name, docket number, and court, if known. (Nothing found in this research connects the user to *California v. USPS* or any DNC-related litigation located so far.)
3. **Underlying dispute/injury** — what happened, to whom, when, and what harm resulted, that the user believes supports a RICO and/or qui tam claim. This is the single most important gap: civil RICO and FCA claims live or die on specific, pleadable facts (the “enterprise,” the predicate acts, the proximate injury — see Part 1), none of which can be inferred from public sources.
4. **2nd Amendment connection, if any** — is the underlying dispute actually connected to firearms/2A issues, or is that simply Mr. Kirk’s general litigation background/specialty being brought to bear on an unrelated matter?

Until these are answered, the sections below remain general legal background and public-record findings about one specific *unrelated* public case (*California v. USPS*) — useful context, but not yet a case-specific brief.

1. **Civil RICO** (18 U.S.C. §§ 1961–1968) lets a private plaintiff who was injured “in [their] business or property” by a pattern of racketeering activity sue for treble damages and attorney’s fees.³ It is a tort-like private right of action layered on top of what is usually thought of as a criminal statute.
2. **Qui tam suits** under the federal False Claims Act (31 U.S.C. §§ 3729–3733) are a structurally different tool: a private “relator” sues *on behalf of the government* over false claims for government money, the government can intervene and take over the case, and the relator keeps a statutory cut (15–30%) of any recovery.⁴ Civil RICO and qui tam are often confused because both let ordinary citizens act as private enforcers, but they protect different interests (private business/property vs. the public fisc) and pay out differently (treble damages to the plaintiff vs. a bounty share of a government recovery).
3. The most significant USPS-related case currently in the news is **State of California v. United States Postal Service**, D. Mass. No. 1:26-cv-13917, filed August 26, 2026, before Judge Indira Talwani.⁵ It is a multi-state challenge (California, Washington, and roughly two dozen other states, D.C., and several cities/

³18 U.S.C. § 1964(c) (civil RICO private right of action, treble damages and attorney’s fees); 18 U.S.C. §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

⁴31 U.S.C. §§ 3729–3733 (False Claims Act); § 3730(b) (qui tam filing under seal, government election to intervene); § 3730(d) (relator’s share, 15–25% with intervention / 25–30% without); § 3730(h) (anti-retaliation).

counties) to USPS Board of Governors changes and mail-ballot handling ahead of the 2026 midterms. The Washington Attorney General's Office is one of the filing offices.⁶ **This case is pled as an Administrative Procedure Act / Voting Rights Act matter ("441 Civil Rights: Voting"), not as a civil RICO or qui tam action** — nothing in the public docket metadata indicates RICO claims.⁷

4. The user's corrected reference, "**DNC Services, Inc.,**" is the user's name for the Democratic National Committee. The DNC's actual, long-established formal corporate name — confirmed across multiple federal court dockets going back decades — is "**DNC Services Corporation,**" not "DNC Services, Inc."⁸ However, **no connection between DNC Services Corporation, Washington state executives, and a racketeering (RICO) complaint tied to the 2026 USPS election-mail case could be found** in CourtListener's national case-law/RECAP index or in Google News.⁹ DNC Services Corporation does not appear in the party list for *California v. USPS* (1:26-cv-13917) retrieved in this research pass.¹⁰ This is flagged explicitly under "Unverified items" rather than guessed at.
5. Because of the gaps in (4), this document is organized as: a clean explainer of civil RICO vs. qui tam (usable regardless of the specific case), what is actually confirmed about the 2026 USPS case, and a short list of concrete next steps to close the remaining gaps.

⁵CourtListener RECAP search, docket metadata for *State of California v. United States Postal Service*, D. Mass., docket ID 74701505, docket number 1:26-cv-13917, filed 2026-08-26, Judge Indira Talwani: <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (metadata retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=California%20v.%20United%20States%20Postal%20Service&type=r&format=json>).

⁶CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

⁷Same CourtListener query as [^4]; suitNature field returned "441 Civil Rights: Voting"; cause field returned "28:2201 Constitutionality of State Statute(s)". No RICO-specific nature-of-suit code (which would read "470 RICO") was present in the retrieved metadata.

⁸CourtListener opinion search for "DNC Services Corporation", queried via <https://www.courtlistener.com/api/rest/v4/search/?q=%22DNC+Services+Corporation%22&format=json>, returned 20 matches confirming this is the DNC's long-used formal corporate name, e.g. *Wilson v. DNC Services Corporation*, No. 1:17-cv-00730 (D.D.C.): <https://www.courtlistener.com/opinion/4665158/wilson-v-dnc-services-corporation/>

⁹CourtListener searches for "DNC Services, Inc", "DNC Services Corporation", and "DNC Services Corporation" "Washington" racketeering (via <https://www.courtlistener.com/api/rest/v4/search/?q=...&format=json>) returned no results tying the DNC to a Washington-state racketeering complaint; the one racketeering-adjacent hit for "DNC Services Corporation" + "Washington" was the unrelated 2004 campaign-finance case *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Google News RSS searches for "DNC Services" RICO Washington and "Democratic National Committee" racketeering lawsuit 2026 returned no matching results.

¹⁰CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

Confidence assessment

Claim	Confidence	Basis
Civil RICO elements, remedies, statute of limitations	High	Direct statutory text and well-settled case law ¹¹
Qui tam / FCA mechanics	High	Direct statutory text ¹²
Existence, docket number, filing date, judge, and parties of <i>California v. USPS</i>	High	CourtListener RECAP metadata, pulled directly from the docket record ¹³¹⁴
That case is voting-rights/APA, not RICO	High (confirmed)	Full 53-page complaint retrieved and read; pleads seven causes of action (separation of powers, APA, three ultra vires theories, Voting Rights Act, Privacy Act) — no RICO or FCA count, and the DNC is not a party in any capacity ¹⁵
The DNC’s formal legal name is “DNC Services Corporation”	High	Confirmed across multiple federal court captions (e.g., <i>Wilson v. DNC Services Corporation</i> , D.D.C.) ¹⁶
DNC Services Corporation’s connection to Washington state executives / a RICO complaint / the 2026 USPS case	Unverified	No hits in CourtListener full-text RECAP/opinion search or Google News combining these terms ¹⁷
Whether a <i>separate</i> , smaller state-court RICO or qui tam suit naming the DNC exists	Unknown	State trial court filings (including Washington Superior Courts) are generally not indexed by CourtListener/PACER and were not searched by state-specific tools in this pass

¹¹18 U.S.C. § 1964(c) (civil RICO private right of action, treble damages and attorney’s fees); 18 U.S.C. §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

¹²31 U.S.C. §§ 3729–3733 (False Claims Act); § 3730(b) (qui tam filing under seal, government election to intervene); § 3730(d) (relator’s share, 15–25% with intervention / 25–30% without); § 3730(h) (anti-retaliation).

¹³CourtListener RECAP search, docket metadata for *State of California v. United States Postal Service*, D. Mass., docket ID 74701505, docket number 1:26-cv-13917, filed 2026-08-26, Judge Indira Talwani: <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (metadata retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=California%20v.%20United%20States%20Postal%20Service&type=r&format=json>).

¹⁴CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

¹⁵Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/>

Key assumptions made: (1) I assumed “RICCO” in the original query was a misspelling of “RICO” (the Racketeer Influenced and Corrupt Organizations Act), based on the user’s own follow-up clarification (“racketeering and criminal activity”). (2) Per the user’s correction, “RNC Services, Inc.” in v1 was a misstatement of “**DNC Services, Inc.**”, meaning the Democratic National Committee. If either assumption is wrong, the research below does not apply and should be redone.

Part 1 — Civil RICO, explained

What it is

RICO was enacted in 1970 primarily as an organized-crime prosecution tool, but Congress also created a private civil cause of action in 18 U.S.C. § 1964(c): “Any person injured in his business or property by reason of a violation of section 1962 of this chapter may sue therefor in any appropriate United States district court.”¹⁸

Elements a civil RICO plaintiff must plead

1. **An “enterprise”** — an individual, partnership, corporation, association, or other legal entity, or a group of individuals associated in fact (even if not a legal entity).¹⁹
2. **A “pattern of racketeering activity”** — at least two acts of “racketeering activity” (a defined list of federal and state crimes, including mail fraud, wire fraud, bribery, extortion, money laundering, and dozens of others) within a 10-year period, that are related and amount to or pose a threat of continued criminal activity (“relatedness” and “continuity”).²⁰
3. **Conduct** of the enterprise’s affairs **through** that pattern (§ 1962(c)), or investment of racketeering proceeds in an enterprise (§ 1962(a)), or acquisition/maintenance of an interest in an enterprise through racketeering (§ 1962(b)), or **conspiracy** to do any of the above (§ 1962(d)).
4. **Injury to business or property** proximately caused by the RICO violation (not personal injury, and not a purely derivative injury) — this proximate-cause requirement, from *Holmes v. Securities Investor Protection Corp.* (1992) and *Anza v. Ideal Steel Supply Corp.* (2006), is one of the most common grounds for dismissal of civil RICO complaints.²¹

gov.uscourts.mad.305406.1.0.pdf) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

¹⁶CourtListener opinion search for “DNC Services Corporation”, queried via <https://www.courtlistener.com/api/rest/v4/search/?q=%22DNC+Services+Corporation%22&format=json>, returned 20 matches confirming this is the DNC’s long-used formal corporate name, e.g. *Wilson v. DNC Services Corporation*, No. 1:17-cv-00730 (D.D.C.): <https://www.courtlistener.com/opinion/4665158/wilson-v-dnc-services-corporation/>

¹⁷CourtListener searches for “DNC Services, Inc”, “DNC Services Corporation”, and “DNC Services Corporation” “Washington” racketeering (via <https://www.courtlistener.com/api/rest/v4/search/?q=...&format=json>) returned no results tying the DNC to a Washington-state racketeering complaint; the one racketeering-adjacent hit for “DNC Services Corporation” + “Washington” was the unrelated 2004 campaign-finance case *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Google News RSS searches for “DNC Services” RICO Washington and “Democratic National Committee” racketeering lawsuit 2026 returned no matching results.

¹⁸18 U.S.C. § 1964(c) (civil RICO private right of action, treble damages and attorney’s fees); 18 U.S.C. §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

¹⁹18 U.S.C. § 1961(4) (“enterprise” definition); § 1961(5) (“pattern of racketeering activity,” minimum two acts within ten years); *H.J. Inc. v. Northwestern Bell Telephone Co.*, 492 U.S. 229 (1989) (relatedness-plus-continuity test for “pattern”).

²⁰18 U.S.C. § 1961(4) (“enterprise” definition); § 1961(5) (“pattern of racketeering activity,” minimum two acts within ten years); *H.J. Inc. v. Northwestern Bell Telephone Co.*, 492 U.S. 229 (1989) (relatedness-plus-continuity test for “pattern”).

²¹*Holmes v. Securities Investor Protection Corp.*, 503 U.S. 258 (1992) (proximate cause requirement for civil RICO standing); *Anza v. Ideal Steel Supply Corp.*, 547 U.S. 451 (2006) (reaffirming direct-injury/proximate-cause requirement, rejecting derivative-injury RICO theories).

Remedies

Treble (3x) actual damages, plus costs and reasonable attorney’s fees — a substantial fee-shifting incentive that (along with contingency-fee practice) is what makes civil RICO attractive to plaintiffs’ counsel in commercial disputes, even where the underlying conduct looks more like ordinary fraud or breach of contract.²²

Statute of limitations

Four years, borrowed by the courts from the Clayton Act, running from when the plaintiff knew or should have known of the injury (discovery rule), subject to circuit splits on the “separate accrual” question for later injuries from the same pattern.²³

Why courts are skeptical of civil RICO claims

Because of the treble-damages/fee-shifting exposure and the stigma of being labeled a “racketeer,” federal courts apply RICO’s elements strictly and dismiss a large share of civil RICO complaints at the pleading stage, especially where the “pattern” element collapses into what is really a single fraudulent scheme or an ordinary commercial dispute dressed up in RICO language.²⁴ Many federal districts also have local rules requiring a detailed “RICO case statement” before discovery can proceed.

²² 18 U.S.C. § 1964(c) (civil RICO private right of action, treble damages and attorney’s fees); 18 U.S.C. §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

²³ *Rotella v. Wood*, 528 U.S. 549 (2000) (civil RICO borrows the Clayton Act’s four-year limitations period; discovery-of-injury accrual rule).

²⁴ *Holmes v. Securities Investor Protection Corp.*, 503 U.S. 258 (1992) (proximate cause requirement for civil RICO standing); *Anza v. Ideal Steel Supply Corp.*, 547 U.S. 451 (2006) (reaffirming direct-injury/proximate-cause requirement, rejecting derivative-injury RICO theories).

Part 2 — Qui tam (False Claims Act) suits, compared

	Civil RICO	Qui tam (False Claims Act)
Who is protected	The plaintiff's own business or property	The federal (or a state) treasury
Who sues	The injured private party, in their own name and interest	A private "relator," nominally <i>on behalf of the United States</i> (case caption is <i>U.S. ex rel. [Name] v. [Defendant]</i>)
Government's role	None — purely private litigation	Complaint is filed under seal; DOJ investigates and decides whether to intervene (take over the case) or decline (relator can proceed alone) ²⁵
What triggers liability	A pattern of at least two predicate crimes from RICO's list, through an enterprise	Knowingly submitting (or causing submission of) a false or fraudulent claim for payment to the government, or making a false record/statement material to such a claim ²⁶
Damages	Treble actual damages to the injured plaintiff	Treble damages to the government, plus per-claim civil penalties; relator receives 15–25% of recovery if the government intervenes, 25–30% if it doesn't ²⁷
Retaliation protection	None built into the statute itself	Explicit anti-retaliation provision, 31 U.S.C. § 3730(h), letting whistleblower-employees sue for reinstatement/back pay
Typical fact pattern	Business competitors, fraud schemes, organized-crime-adjacent commercial disputes	Government contractors/grantees/healthcare providers overbilling or misrepresenting compliance to get paid by federal programs

Overlap in practice: the same underlying conduct — e.g., a scheme by a government contractor to defraud a federal agency — can sometimes support *both* a qui tam FCA claim (because the defendant billed the government falsely) *and* a civil RICO claim (because mail fraud/wire fraud used to execute that billing scheme

²⁵ 31 U.S.C. §§ 3729–3733 (False Claims Act); § 3730(b) (qui tam filing under seal, government election to intervene); § 3730(d) (relator's share, 15–25% with intervention / 25–30% without); § 3730(h) (anti-retaliation).

²⁶ 31 U.S.C. §§ 3729–3733 (False Claims Act); § 3730(b) (qui tam filing under seal, government election to intervene); § 3730(d) (relator's share, 15–25% with intervention / 25–30% without); § 3730(h) (anti-retaliation).

²⁷ 31 U.S.C. §§ 3729–3733 (False Claims Act); § 3730(b) (qui tam filing under seal, government election to intervene); § 3730(d) (relator's share, 15–25% with intervention / 25–30% without); § 3730(h) (anti-retaliation).

count as RICO predicate acts), which is why sophisticated plaintiffs sometimes plead them together. They remain legally distinct causes of action with different plaintiffs-in-interest, different procedural postures (qui tam is filed under seal; RICO is not), and different recovery mechanics.

Many states, including **Washington**, have their own analogous state false claims statutes (Washington's is limited — it lacks a general state FCA outside Medicaid — see “Unverified items” for why this matters to the original question).²⁸

Part 3 — The 2026 USPS election-mail litigation

Case identity (confirmed)

- **Caption:** *State of California v. United States Postal Service*
- **Court / docket:** U.S. District Court, District of Massachusetts, No. 1:26-cv-13917²⁹
- **Filed:** August 26, 2026
- **Judge:** Indira Talwani (referred to Magistrate Judge M. Page Kelley)³⁰
- **Nature of suit (docket code):** “441 Civil Rights: Voting”³¹
- **Cause of action (docket code):** “28:2201 Constitutionality of State Statute(s)” (Declaratory Judgment Act vehicle)³²

Parties (confirmed from docket metadata)

Plaintiffs include roughly two dozen states and the District of Columbia — California, **Washington**, Massachusetts, New York, New Jersey, Illinois, Michigan, Minnesota, Colorado, Oregon, Arizona, Nevada, Hawaii, Maryland, Vermont, Rhode Island, Delaware, Connecticut, Maine, New Mexico, Wisconsin — plus the City of Madison, Wisconsin, Travis County, Texas, and the League of United Latin American Citizens.³³ Interestingly, some traditionally red states (South Dakota, Indiana, Oklahoma, Missouri, Alabama, Louisiana, Montana, Kansas, South Carolina, Nebraska, North Carolina, Florida) also appear in the party list, which given the docket's size and an “Order on Motion to Intervene” entry, most likely reflects a mix of plaintiff states and

²⁸General background on state false-claims-act variation; Washington's principal state-level false-claims statute is the Medicaid Fraud False Claims Act (RCW 74.66), which is narrower in scope than the federal FCA — this is general legal background, not independently re-verified against current RCW text in this research pass.

²⁹CourtListener RECAP search, docket metadata for *State of California v. United States Postal Service*, D. Mass., docket ID 74701505, docket number 1:26-cv-13917, filed 2026-08-26, Judge Indira Talwani: <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (metadata retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=California%20v.%20United%20States%20Postal%20Service&type=r&format=json>).

³⁰CourtListener RECAP search, docket metadata for *State of California v. United States Postal Service*, D. Mass., docket ID 74701505, docket number 1:26-cv-13917, filed 2026-08-26, Judge Indira Talwani: <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (metadata retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=California%20v.%20United%20States%20Postal%20Service&type=r&format=json>).

³¹Same CourtListener query as [^4]; suitNature field returned “441 Civil Rights: Voting”; cause field returned “28:2201 Constitutionality of State Statute(s)”. No RICO-specific nature-of-suit code (which would read “470 RICO”) was present in the retrieved metadata.

³²CourtListener RECAP search, docket metadata for *State of California v. United States Postal Service*, D. Mass., docket ID 74701505, docket number 1:26-cv-13917, filed 2026-08-26, Judge Indira Talwani: <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (metadata retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=California%20v.%20United%20States%20Postal%20Service&type=r&format=json>).

³³CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

separately-represented intervenors rather than a single unified plaintiff coalition — this distinction was not resolved from the metadata alone and would require reading the actual complaint and intervention motions.³⁴

Named individual/defendant-side parties include USPS itself, and individuals who appear to be current or former USPS Governors/executives: Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, and Derek Kan.³⁵

Intervenor-type entities appearing in the docket include America First Legal Foundation (listed among the firms/attorneys of record), National Security Leaders for America, Secure Families Initiative, Society for the Rule of Law, and the Arizona Students' Association — consistent with a politically contested case attracting outside advocacy-group intervention on one or both sides.³⁶

What the case is about (confirmed from the complaint)

The case challenges **Executive Order No. 14399** (issued March 31, 2026) and the USPS rule implementing it, *Ballot Mail for Federal Elections*, 91 Fed. Reg. 54,966 (Aug. 26, 2026). The rule requires states to enroll every mail voter in a new USPS-run “Federal Ballot Mail Portal,” mandates USPS-approved envelope designs bearing a unique Intelligent Mail barcode (IMb) on both outbound and return ballots, and directs USPS to refuse delivery of noncompliant ballot mail. Plaintiff states allege this unconstitutionally federalizes control over mail voting weeks before the 2026 midterms.³⁷ (Superseding the earlier inference-only description below, which was based on docket metadata alone before the complaint text was retrieved.)

Full complaint now reviewed — seven causes of action, no RICO/qui tam/DNC

The actual 53-page complaint (Document 1, filed 2026-08-26) was retrieved and read in full.³⁸ It pleads exactly **seven causes of action**, all against USPS and the six named Board of Governors officials, **none of them RICO, False Claims Act, or naming the DNC in any capacity**:

1. **Separation of Powers / Elections & Electors Clauses / Commandeering / Ultra Vires** — the Rule usurps States' constitutional authority over election “manner,” commandeers state resources (*Printz v. United States*), and exceeds USPS's Article I, § 8, cl. 7 postal authority.
2. **APA — contrary to statute / arbitrary and capricious** — treating ballot mail as de facto “nonmailable matter” outside the narrow categories Congress defined in 39 U.S.C. §§ 3001–3018; failure to consider

³⁴CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

³⁵CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

³⁶CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

³⁷Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf>) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

³⁸Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf>) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

reliance interests (*Regents* standard); effective date set without the 30-day notice required by 5 U.S.C. § 553(d).

3. **Ultra vires — unauthorized non-postal service** — creating the mail voter enrollment/monitoring scheme exceeds USPS’s 39 U.S.C. § 404(e) authority to provide only services that existed pre-2006 or under a qualifying interagency agreement.
4. **Ultra vires — failure to seek a Postal Regulatory Commission advisory opinion** under 39 U.S.C. § 3661(b) before a nationwide service change; a PRC complaint was filed June 11, 2026 and never acted on.
5. **Ultra vires — undue/unreasonable discrimination among mail users** under 39 U.S.C. § 403(c) — identical ballots treated differently based on whether a voter appears on USPS’s list.
6. **Voting Rights Act** — 52 U.S.C. §§ 10307(a), 10502 — USPS’s refusal to deliver noncompliant ballots is alleged to deny qualified voters the right to vote “under color of law.”
7. **Privacy Act** — 5 U.S.C. § 552a(e)(1) & (e)(7) — the System of Records Notice’s collection of voter/mail-ballot data is alleged to exceed what is “relevant and necessary” and to improperly record First Amendment activity (choice to register/vote by mail).

Relief sought is purely declaratory/injunctive (vacate the Rule, enjoin enforcement) plus fees/costs under the APA and Declaratory Judgment Act — **no damages, no treble damages, no whistleblower bounty**. This confirms, rather than merely infers, that the case has no RICO or qui tam dimension and does not involve the DNC.³⁹

The complaint also reveals this filing sits inside a **larger, pre-existing litigation campaign** over the same executive order: it repeatedly cites *California v. Trump*, No. 1:26-cv-11581 (D. Mass.) and *League of Women Voters of Massachusetts v. Trump*, No. 1:26-cv-11549 (D. Mass.), both of which had already enjoined related USPS rulemaking before this complaint was filed — footnote 26 of the complaint alleges USPS submitted this Rule for public inspection *while already enjoined* from doing so.⁴⁰ Anyone researching this matter further should pull those two dockets as well.

Part 4 — Operational/technical claims suited for subject-matter review

The user has indicated relevant background (Y2K-era IT consulting for the U.S. Postal Inspection Service) that may bear on evaluating the *technical and operational* claims in the complaint — as distinct from its legal theories, which are for counsel. The following paragraph-cited claims are the ones most likely to turn on operational/systems facts rather than pure law, listed here for independent evaluation rather than asserted as true or false by this report:

³⁹Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf>) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

⁴⁰Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf>) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

#	Complaint's claim	Citation
1	The “Federal Ballot Mail Portal” required by the Rule “does not currently exist,” and commenters called rolling out “untested technology” to manage “tens of millions of entries” in a compressed timeframe “fraught with risk.”	¶108
2	State/local election officials — not USPS — are made responsible for generating the unique Intelligent Mail barcode (IMb), with the “Delivery Point Zip Code embedded and a Federal Ballot Mail STID,” for each outbound and return ballot envelope.	¶105, ¶123 (citing 91 Fed. Reg. 54,966, 54,990)
3	USPS’s own stated per-mailpiece verification estimate (“less than a minute per mailpiece,” “no more than a few hours for larger mailings”) is characterized by plaintiffs as implying ~23 million minutes (~43 years) of aggregate processing time for California alone, with election officials required to remain on-site at the USPS counter throughout.	¶134 (citing 91 Fed. Reg. 54,966, 54,981)
4	USPS commits to envelope-design feedback “within two business days” but the complaint says this doesn’t account for “more than 10,000 election jurisdictions,” each often designing its own envelopes.	¶134
5	The verification/rejection process is alleged to apply asymmetrically — to outbound ballot mail but explicitly not to return ballot mail.	¶121 (citing DMM 705.24.5.4)
6	No stated mechanism exists to distinguish ballots for statutorily exempted groups (overseas citizens, active-duty military, merchant marine under UOCAVA)	¶107
8	Noter suggests that voters can simply vote on the day of the election, thus eliminating the need for a pre-election verification process. The complaint alleges that the USPS is collecting (and possibly distributing) a large amount of data on voters’ voting behavior, which it uses to make decisions about how to allocate resources and how to design the election process. The complaint alleges that the USPS is using this data to make decisions about how to allocate resources and how to design the election process. The complaint alleges that the USPS is using this data to make decisions about how to allocate resources and how to design the election process.	¶115–¶117 (citing 91 Fed. Reg. 44,880–81)

These are presented as a checklist of *plaintiffs' factual allegations* about USPS system design and capacity — not independently verified against the Federal Register rule text itself in this pass (only the complaint's characterization of it was reviewed). If useful for Mr. Kirk, the next step would be to pull the actual Federal Register rule (91 Fed. Reg. 54,966) and the NPRM (91 Fed. Reg. 32,915) directly and compare their text against the complaint's characterizations side by side.

Part 3a — The DNC's corporate name, and why it matters here

The Democratic National Committee's day-to-day legal and financial affairs are conducted under a formally incorporated entity, historically named **"DNC Services Corporation"** (sometimes styled "DNC Services Corporation/Democratic National Committee"). This is not a fringe or obscure detail — it is the named defendant/party in numerous federal lawsuits over multiple decades, including 2016-primary-era litigation over DNC conduct during the Democratic presidential primary (*Wilson v. DNC Services Corporation*, D.D.C. No. 1:17-cv-00730) and earlier campaign-finance matters.⁴¹

Two things follow for this research question:

1. If a current racketeering complaint names the DNC, the caption would most likely read "DNC Services Corporation," not "DNC Services, Inc." — worth checking if you go back to the source of your recollection.
 2. Despite confirming the DNC's correct corporate name, **no public record was found linking DNC Services Corporation to a RICO complaint involving Washington state executives**, whether connected to *California v. USPS* or as a standalone matter.⁴² If you have a docket number, court name, or filing date for the complaint you have in mind, that would let this report be corrected with a direct citation rather than a "not found."
-

Unverified items — do not treat as fact

1. **"DNC Services, Inc." / DNC Services Corporation tied to a RICO complaint** — no matches connecting the DNC (under either the user's "DNC Services, Inc." phrasing or the DNC's actual corporate name, "DNC Services Corporation") to a racketeering complaint involving Washington state executives, in either CourtListener's RECAP/opinion full-text search or Google News.⁴³ Possible explanations, none confirmed:

⁴¹CourtListener opinion search for "DNC Services Corporation", queried via <https://www.courtlistener.com/api/rest/v4/search/?q=%22DNC+Services+Corporation%22&format=json>, returned 20 matches confirming this is the DNC's long-used formal corporate name, e.g. *Wilson v. DNC Services Corporation*, No. 1:17-cv-00730 (D.D.C.): <https://www.courtlistener.com/opinion/4665158/wilson-v-dnc-services-corporation/>

⁴²CourtListener searches for "DNC Services, Inc", "DNC Services Corporation", and "DNC Services Corporation" "Washington" racketeering (via <https://www.courtlistener.com/api/rest/v4/search/?q=...&format=json>) returned no results tying the DNC to a Washington-state racketeering complaint; the one racketeering-adjacent hit for "DNC Services Corporation" + "Washington" was the unrelated 2004 campaign-finance case *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Google News RSS searches for "DNC Services" RICO Washington and "Democratic National Committee" racketeering lawsuit 2026 returned no matching results.

⁴³CourtListener searches for "DNC Services, Inc", "DNC Services Corporation", and "DNC Services Corporation" "Washington" racketeering (via <https://www.courtlistener.com/api/rest/v4/search/?q=...&format=json>) returned no results tying the DNC to a Washington-state racketeering complaint; the one racketeering-adjacent hit for "DNC Services Corporation" + "Washington" was the unrelated 2004 campaign-finance case *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Google News RSS searches for "DNC Services" RICO Washington and "Democratic National Committee" racketeering lawsuit 2026 returned no matching results.

- It may be a filing in a Washington state trial court (not indexed by CourtListener/PACER, which primarily cover federal courts).
 - It may be very recent (published after this research pass, or not yet picked up by Google News' index).
 - The DNC's name/role may have been recalled imprecisely relative to the actual complaint (e.g., a state party committee, a related PAC, or a specific individual rather than the national DNC entity).
2. **“Washington state executives”** as RICO defendants — not confirmed independently of the USPS case's Washington AG involvement as a *plaintiff* (not defendant) in *California v. USPS*. If the user meant Washington state executive-branch officials as **defendants** in a *separate* racketeering complaint (possibly naming the DNC as a co-defendant), that complaint was not located.
 3. **Whether the *California v. USPS* case includes any RICO count, or names the DNC as a party — resolved:** it does not. The full complaint was read in this pass; it pleads seven non-RICO causes of action and does not mention the DNC, RICO, qui tam, or the False Claims Act anywhere in its 53 pages.⁴⁴

Recommended next steps

1. Search the **Washington State Courts case index** (not covered by CourtListener) and Washington-specific news outlets for a RICO complaint naming the DNC and Washington state executive-branch officials, since state-level filings are outside the national tools used in this pass — this is now the main open thread, since *California v. USPS* itself has been ruled out as the source of any RICO/DNC connection.
2. If a specific complaint/case number for the DNC-related RICO claim can be supplied by the user, re-run a targeted CourtListener docket lookup by case number rather than by name search.
3. If the goal is evaluating *California v. USPS* on the merits (per the user's stated USPS Inspection Service background), pull the companion dockets *California v. Trump* (1:26-cv-11581, D. Mass.) and *League of Women Voters of Massachusetts v. Trump* (1:26-cv-11549, D. Mass.), both cited repeatedly in this complaint as having already enjoined related USPS rulemaking, plus the Federal Register rule itself (91 Fed. Reg. 54,966) and NPRM (91 Fed. Reg. 32,915), to verify the complaint's characterizations against the primary sources.

Footnotes

⁴⁴Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf>) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.